ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], made the following by-laws:—

Title

1. These by-laws shall be cited as the City of Masvingo (Dog Licensing and Control) By-laws, 2025.

Application

2. These by-laws shall apply to the area under the jurisdiction of the City of Masvingo.

Interpretation

3. In these by-laws—

"at large" in relation to dogs means roaming without restraints beyond the limit of its owner's property;

"authorised officer" means a council police officer, police officer or any other person duly authorised by the council to exercise any function conferred by these by-laws;

"council" means City of Masvingo;

"dog" means any dog or bitch which is of or over the age of six months;

"owner" in respect of the dog, includes any person who has control and custody of a dog which is kept in the council area;

"pound" means a building, premises or other place set aside by the Council for the keeping of dog for the purpose of these by-laws;

"spayed bitch" means a bitch in respect of which a certificate has been signed by a registered veterinary surgeon certifying that the bitch has been spayed;

"unspayed bitch" means a bitch which, at the time of licensing, has not been certified by a registered veterinary surgeon as having spayed.

Application for licence

4. (1) No person shall keep a dog in a council area unless he or she has obtained a licence and a licence badge:

Provided that if the dog—

(a) attains the age of six months after the 30th of September in any year; or

(b) is licensed by another local authority;

the owner of the dog shall be exempted for licensing the dog according to the by-laws until the 1st day of January of the forthcoming year.

(2) The owner of any dog required to be licensed in terms of this section shall apply to the Council for a licence and licence badge.

(3) An application for licence shall be accompanied by—

(a) a fee specified in the Second Schedule;

(b) a valid rabies vaccination certificate in respect of the dog for which application relates;

(c) in the case of urban centres, proof that the premises have got a secured perimeter fence or a perimeter wall.

(4) On payment of licensing fee and the production of a valid rabies vaccination certificate by the owner of the dog, the council shall issue to the owner of the concerned dog—

(a) a licence; and

(b) a badge bearing the year and number of the licence.

(5) If a licence badge issued in terms of subsection (4) is lost, defaced or destroyed, the owner of the dog in respect of which such licence badge was issued must, on payment of a sum equal to fifty *per centum* of fee fixed in terms of section 3(a) obtain a duplicate of such licence badge from the council.

(6) A licence or licence badge issued in accordance with these by-laws shall not be transferrable—

(a) to any other person; or

(b) from one dog to another.

Register of licences

5. Council shall keep a register of licenses issued in terms of this section, with the following:—

(a) the name and address of the owner of such a dog;

(b) the number and date of issue of—

(i) the licence and licence badge;

(ii) any duplicate licence badge issued in respect of each dog.

Prohibition of keeping dog causing nuisance

6. (1) No person shall keep any dog which, by constant or excessive barking, howling or whining or by straying property, creates a disturbance to, or destroys the comfort of any other person.

(2) Where repeated complaints of nuisance or dangerous incidents to members of the public due to the keeping of a dog by any owner are brought to the attention of the council, the council, through the efforts of an authorized officer, may give written notice to the owner concerned that if any further complaint is brought to the attention of council within a period specified in the notice, the council may prohibit any owner from keeping any dog within the council area for a period not exceeding one year:

Provided that before disqualifying an owner in terms of this section, the council shall allow the owner concerned to make any written representation he or she might wish to make as to why such qualifications should be imposed on him or her. The Council may not disqualify such an owner if the written representation is seen to be valid.

Impounding, sale and destruction of dogs

7. (1) No person shall permit a dog to be at large.

(2) If any dog is at large in contravention of this section, an authorised officer may seize such dog and cause it to be detained in a pound.

(3) Upon the seizure and detention of a dog in terms of subsection (2), the council shall—

(a) if the owner is known, forthwith notify him or her of the fact;

(b) if the owner is unknown, forthwith publish a notice or advertise in a newspaper circulating within the area—

(i) giving a full description of the dog;

(ii) containing a warning that the dog may be killed or sold if the owner does not claim it within seven days of the publication of the notice.

(4) If, within seven days of a notice being in terms of subsection (4) the owner of any dog seized and detained in terms of subsection (3)—

(a) claims the dog, the council shall ensure that the dog is licensed in terms of the by-laws and then release the dog upon payment by the owner of any expense which the council may have reasonably incurred during the detention of that dog; or

(b) fails to claim the dog, having claimed it, fails or refuses to comply with paragraph (a), the council may without any liability for compensation, sell, or otherwise dispose of the dog as it thinks fit.

(5) Notwithstanding anything to the contrary in this section, an authorised officer may kill any dog found at large if such dog poses danger to the public, or is incurably injured or diseased.

(6) Council provides the manner and circumstances in which the authorised officer may deal with any nuisance dog.

Inspection and enforcement

8. (1) Any authorised officer may at any reasonable time during the day and with the consent of the owner of the property, enter any property in order to ascertain whether these by-laws are complied with.

(2) An authorised officer may require any person found on the property to truthfully answer any question that he or she may ask in order to ascertain the true identity and whereabouts of the owner of the dog.

(3) For the purpose of these by-laws, every person in which custody, charge or possession, or whose premises any dog is found, shall be deemed to be the owner of such dog until the contrary is proven.

Exemption from liability of Council and authorised officials from any loss to any dog

9. The council or any authorised officer shall not be liable for any loss or damage to any dog which—

(a) is sold, killed or otherwise disposed of; or

(b) sustains injury or contracts any disease during its conveyance to or during its detention in a pound, for the purpose of these by-laws.

Maximum permitted number of dogs to be kept at any premises

10. (1) No person shall keep—

(a) in the case of low density areas, not more than three dogs;

(b) in the case of medium density areas, not more than two dogs;

(c) in the case of high density areas, not more than one dog;

within the limits of his or her property unless the council grants him or her written permission to do so.

(2) Any person to whom permission has been granted in terms of subsection (1) shall, within 14 days of the date upon which he or she ceases to keep more than the permitted number of dogs within the limits of his or her property, notify the Council to that effect and the said permission shall be deemed to have been withdrawn.

Offences

11. (1) Any person who—

(a) contravenes any provisions of these by-laws; or

(b) fails to comply with a lawful requirement made by an authorised officer in terms of these by-laws; or

(c) obstructs any authorised officer in the execution of his or her duties in terms of the by-laws;

shall be liable to—

(i) a fine specified in the Third Schedule; or

(ii) if the offence has continued for more than thirty days, a fine or penalty specified in the Third Schedule for each day during which the offence has continued.

(2) Any person who fails to comply with any liability emanating from his or her contravention of any of the offences stipulated in

these by-laws within 90 days, shall be guilty of an offence and liable to a fine not exceeding level 4 or to imprisonment to a period not exceeding two years or to both such fine and such imprisonment.

FIRST SCHEDULE (*Section 7)*

GUIDELINES FOR ACTION

Dog at large but vaccinated:	1. Dog may be impounded
	2. Dog may be shot
Dog at large but not vaccinated:	1. Dog may be impounded
	2. Dog may be shot
Dog at large but vaccinated and person bitten:	1. Dog may be impounded
	2. Dog may be shot
	3. Owner to pay for health bills incurred
	4. Compensation to the aggrieved person be determined by the court
Dog at large but not vaccinated and person bitten:	1. Dog may be shot
	2. Owner to pay health bills incurred
	3. Compensation to the aggrieved person to be determined by the court
Nuisance dog (not at large):	1. Dog may be impounded
	2. Dog may be shot

SECOND SCHEDULE

FEES

Description	**Section**	**Amount (USD)**
Application for licence	4	1,00
Dog licence: Bitch	4	10,00
Dog	4	5,00
Replacement of badge	4	5,00
Application fee for keeping dogs beyond the permitted threshold	10	2,00 per dog

THIRD SCHEDULE

OFFENCES AND PENALTIES

Description	Section	Amount (USD)
Dog without a licence	4	20,00
Dog nuisance	6	10,00
Dog at large (not vaccinated):	7	50,00
Dog at large (ferocious and unmuzzled)	7	50,00
Dog at large (vaccinated and person bitten):	7	10,00
Dog at large (unvaccinated and person bitten):	7	50,00
Dog at large (suffering from contagious disease)	7	30,00
Bitch at large (on heat or season)	7	40,00
Dog at large (suffering from contagious disease – person bitten)	7	100,00
Keeping beyond approved threshhold	10	10,00 per extra dog or bitch

The fines and penalties are payable in local currency at the prevailing interbank rate.